

25STCV24477 25STCV24477

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Case Number: 25STCV24477 Hearing Date: September 14, 2026 Dept: 617

Dept.

617

Date:

9-14-26

Case

#: 25STCV24477

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Farmers Group, Inc., Farmers Insurance Company, Inc.,
Farmers Insurance Exchange, and Brian Kiesel

RESPONDING

PARTY: Plaintiff, Sean Hellman

RELIEF

REQUESTED

Demurrer

to First, Second, Ninth, Tenth, Thirteenth through Fifteenth, and Eighteenth
through Twentieth Causes of Action in Complaint

SUMMARY
OF ACTION

Plaintiff

Sean Hellman formerly worked as a Direct Repair Facility Consultant for Defendant Farmers Group, Inc. He alleges that his newly assigned supervisor, Defendant Brian Kiesel, subjected him to "intense micromanagement and unfairly harsh comments" and referred to him as "the old guy" during a team call. Plaintiff further alleges that around the same time, Farmers Group adopted a new performance metric based on "year-over-year percentage increases" that disproportionately favored newer, younger employees. Older and more experienced employees such as Plaintiff were already high performers and thus meeting regular percentage increases was extremely difficult compared to younger and less experienced employees who had more room to improve.

Plaintiff

alleges that his health declined due to the "toxic and harassing work environment" created by Kiesel and he went on unpaid leave from January 20 to July 23, 2023. After Plaintiff submitted another reasonable accommodation form, Farmers Group terminated him because he was unable to return to work "with or without an accommodation." On August 20, 2025, Plaintiff filed the instant action against Farmers Group, Kiesel, Farmers Insurance Company, Inc. (FIC), and Farmers Insurance Exchange (FIE), asserting numerous claims under the Fair Employment and Housing Act and Labor Code.

RULING: Sustained in
part.

Defendants demur to the first, second, ninth, tenth, thirteenth through fifteenth, and eighteenth through twentieth causes of action in Plaintiff's complaint for discrimination, harassment, breach of contract not to terminate employment without good cause, intentional infliction of emotional distress, negligent hiring, supervision, and retention, failure to pay vested vacation time, meal and rest period violations, and failure to provide adequate wage statements. Defendants argue that Plaintiff fails to state his claims. Plaintiff opposes the demurrer, maintaining the sufficiency of the allegations in support of his claims. Defendants' demurrer is sustained with leave to amend as to the harassment, intentional infliction of emotional distress, negligent hiring, vacation time, meal and rest period, and wage statements claims. The demurrer is overruled as

to the discrimination and breach of contract not to terminate without good cause claims.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The Court first rejects FIC and FIE’s argument that Plaintiff fails to state claims against them because he does not allege they were his employers. Plaintiff alleges that “Defendants both directly and indirectly employed plaintiff Hellman.” [Compl. ¶ 5.] This is sufficient to plead an employment relationship. (*Garton v. Title Ins. & Trust Co.* (1980) 106 Cal.App.3d 365, 376.) Plaintiff therefore sufficiently alleges that FIC and FIE were his employers. The Court proceeds to consider Defendants’ specific challenges to each cause of action.

First Cause of Action:

Discrimination

The demurrer to the discrimination claim is overruled. The Farmers Defendants argue that Plaintiff’s discrimination claim fails because he does not allege his age was a substantial reason for his termination. However, Plaintiff’s claim is premised on

disability and medical condition discrimination in addition to age discrimination. A general demurrer does not lie to a portion of a cause of action. (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1167.) The demurrer to this claim is therefore overruled.

Second Cause of Action:

Harassment

Defendants contend that Plaintiff fails to state a harassment cause of action because he does not allege the harassment was based on his age or medical conditions or was severe or pervasive.

The elements of a hostile work environment claim are: “(1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff’s] protected status; (4) the harassment unreasonably interfered with [plaintiff’s] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581.) The conduct complained of must be “severe enough or sufficiently pervasive to alter the conditions of employment.” (Id. at p. 582.)

The demurrer to the harassment claim is sustained. The lone harassing conduct based on Plaintiff’s age is Kiesel’s alleged reference to Plaintiff as “the old guy” during a team call which Plaintiff did not attend. [Compl. ¶ 13(q).] This isolated incident alone is insufficient to constitute severe or pervasive conduct. There is also no nexus between Kiesel’s supervision and alleged unfair criticism of Plaintiff to Plaintiff’s disability or medical condition. Plaintiff alleges that “Kiesel’s campaign of retaliation and harassment of Hellman intensified after Hellman became ill, filed a workers’ compensation claim, and required accommodations and medical leave” but he does not explain how the harassment “intensified” or specify its temporal connection to his illness. [Id. ¶ 13(m).] Because there is a reasonable possibility that Plaintiff can amend his complaint to cure this defect, he is granted leave to amend.

Ninth and Tenth Causes of

Action: Breach of Express Oral Contract and Implied-In-Fact Contract Not to Terminate Employment Without Good Cause

The Farmers Defendants argue that

Plaintiff's breach of express oral contract claim fails because he does not allege the existence of the contract and termination without good cause. They further contend that the breach of implied-in-fact contract claim fails because Plaintiff does not plead its existence.

The statutory presumption of

at-will employment "may be superseded by a contract, express or implied, limiting the employer's right to discharge the employee." (Foley v. Interactive Data Corp. (1988) 47 Cal.3d 654, 665.) "The contractual understanding need not be express, but may be implied in fact, arising from the parties' conduct evidencing their actual mutual intent to create such enforceable limitations." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 336.) Relevant factors include "the personnel policies or practices of the employer, the employee's longevity of service, actions or communications by the employer reflecting assurances of continued employment, and the practices of the industry in which the employee is engaged." (Id. at pp. 336-37.) "[T]he totality of the circumstances' must be examined to determine whether the parties' conduct, considered in the context of surrounding circumstances, gave rise to an implied-in-fact contract limiting the employer's termination rights." (Id. at p. 337.)

Plaintiff sufficiently pleads his

breach of oral contract claim. To state a cause of action for breach of contract, a plaintiff must plead: (1) the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damage. (Otworth v. Southern Pacific Transportation Co. (1985) 166 Cal.App.3d 452, 458.) Here, Plaintiff alleges that he and "Defendants, through their agents, entered an oral agreement not to terminate plaintiff's employment except for good cause." [Compl. ¶ 85.] The consideration exchanged was the good cause requirement and Plaintiff's corresponding obligation to perform his job "in an exemplary manner." [Ibid.] Plaintiff performed his duties under the alleged contract by performing his job in such a manner and the Farmers Defendants breached the agreement by terminating Plaintiff without good cause. [Id. ¶¶ 85-86.] Whether the termination was justified is a factual dispute not subject to determination on demurrer. Finally, Plaintiff suffered damages in the form of loss of earnings and benefits. [Id. ¶ 87.] Plaintiff has therefore pled a breach of oral contract claim and Defendants' demurrer to this claim is overruled.

Plaintiff also adequately pleads the existence of an implied-in-fact contract limiting termination for only good cause. Plaintiff worked for the Farmers Defendants for 31 years and “received multiple promotions, numerous awards, and recognition for his professional achievements.” [Compl. ¶ 11.] Plaintiff also alleges that Defendants had a practice of only terminating employees for cause and that this was the industry standard. [Id. ¶ 89.] This is sufficient to plead the existence of an implied-in-fact contract to terminate only for good cause. The demurrer to this claim is thus overruled.

Thirteenth Cause of Action:

Intentional Infliction of Emotional Distress

Defendants argue that Plaintiff fails to state his intentional infliction of emotional distress claim because he does not allege extreme or outrageous conduct.

The elements of an intentional infliction of emotional distress claim are: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant’s extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress.” (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.) “A defendant’s conduct is considered to be outrageous if ‘it is so “extreme as to exceed all bounds of that usually tolerated in a civilized community.”’” (Id. at p. 1007.)

The demurrer to the intentional infliction of emotional distress claim is sustained. Plaintiff’s claim rests on the alleged harassment he experienced from Kiesel’s unfair criticism and management style and his ultimate termination for discriminatory reasons. But such personnel management actions, without more, are insufficient to support Plaintiff’s emotional distress claim even if they were motivated by discriminatory purposes. (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.) Because there exists a reasonable possibility that Plaintiff can amend his complaint to cure this defect, he is granted leave to amend.

Fourteenth Cause of Action:

Negligent Hiring, Supervision, and Retention

The demurrer to the negligent

hiring claim is sustained. The Farmers Defendants argue that Plaintiff's negligent hiring claim fails because he does not allege that Defendants knew or should have known that hiring or retaining Kiesel created a substantial risk that Kiesel would harass Plaintiff. Liability for negligent hiring, supervision, and retention "is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) Here, Plaintiff fails to allege that the Farmers Defendants knew or should have known of the risk that Kiesel would harass Plaintiff. Kiesel's mere reputation for "reprimanding and firing employees at a higher rate than other supervisors" does not create a risk of harassment. [Compl. ¶ 13(m).] Neither does Plaintiff allege that the Farmers Defendants were on notice of the unjustified criticism Plaintiff received from Kiesel as Plaintiff apparently only made a complaint to Kiesel himself. [Id. ¶ 13(o).] Because there is a reasonable possibility that Plaintiff can amend his complaint to cure this defect, he is granted leave to amend.

Fifteenth and Eighteenth

through Twentieth Causes of Action: Failure to Pay Vested Vacation Time, Meal and Rest Period Violations, and Failure to Provide Adequate Wage Statements

The demurrer to the vacation time,

meal and rest period, and wage statements claims is sustained as to Kiesel. Kiesel argues that these claims fail because Plaintiff does not allege his involvement in the alleged violations. To hold an individual defendant liable under Labor Code section 558.1 for certain wage and hour violations, the plaintiff must allege the defendant's personal involvement in the violations or "sufficient participation in the activities of the employer, including, for example, over those responsible for the alleged wage and hour violations." (Usher v. White (2021) 64 Cal.App.5th 883, 896-97.) Here, Plaintiff makes no allegations regarding Kiesel's involvement or participation in the alleged wage and hour violations. Because there is a reasonable possibility that Plaintiff can amend his complaint to cure this defect, he is granted leave to amend.

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of

the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendants
to give notice.